

IN THE EYE OF THE STORM Ranveer Allahbadia, YouTuber and podcaster

the 1868 Hicklin Test, which deemed any material that could "deprave and corrupt" as obscene, to the 1957 Roth Test of the US that evaluated content as a whole to determine if it appeals to "prurient interests". In 2014, the Indian judiciary further refined its stance in *Aveek Sarkar vs State of West Bengal*, adopting a "community standards" test that considers contemporary social values while determining what constitutes obscenity. Under the Bharatiya Nyaya Sanhita (BNS), 2023, Section 294 criminalises the sale, distribution or display of obscene content, defining it as material that is "lascivious" or appeals to "prurient interest". It invites up to two-year jail. Meanwhile, conviction for transmitting obscene content online under Section 67 of the IT Act, 2000, can lead to up to three years in prison.

"Such behaviour has to be condemned," the apex court remarked on Allahbadia's issue. "Just because you are popular, you cannot take society for granted.... There is something very dirty in his mind, which has been vomited." Expressing concern over the unchecked nature of online speech, the court also emphasised the urgency to intervene, stating, "We cannot overlook the importance and sensitivity of the issue. If the Government of India is willing to take action, we will be very happy. Otherwise, we are not going to leave this vacuum unaddressed".

THOUGH GRANTING HIM PROTECTION FROM ARREST, THE SUPREME COURT REBUKED ALLAHBADIA, CALLING HIS REMARKS "DISGUSTING", "FILTHY" AND REFLECTIVE OF A "PERVERTED MIND"

The court has further directed the Attorney General and Solicitor General to appear in the next hearing to discuss the issue of obscenity in digital media. This has sent ripples through India's creator community, which fears regulatory action against social media platforms. "A lot of creators are going to be scared about the kind of content they put out," says Ayush Shukla, a podcaster and founder of Finnet Media, a content creation and influencer marketing firm. "Ranveer is paying a bigger price because he is popular. He is being made a scapegoat."

Allahbadia's future remains uncertain. He could challenge the gag order on the grounds of free speech or push for consolidation of FIRs to avoid prolonged litigation across multiple states. If his legal team can successfully argue that his remarks don't meet the obscenity threshold, the FIRs may be quashed altogether. Beyond legal troubles, the controversy has dealt a significant blow to his reputation and ventures. His platforms are in a limbo for now and threats have extended to his family—his mother was reportedly verbally abused by individuals posing as patients.

"Allahbadia meant no malice repeating a joke he had heard before," says a former colleague. "The incident doesn't need that much attention." While his supporters argue that his remarks, however distasteful, do not warrant criminal prosecution, his critics—and now the Supreme Court—contend that such speech corrodes social morality and should not go unpunished. "With great power comes great responsibility," goes the popular adage. Allahbadia, now facing both personal and professional reckoning, is learning that power also brings intense scrutiny. His case may become a defining moment for digital content regulation in India, forcing influencers to navigate their words and actions with far greater caution. ■